

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1485

By: Johns

AS INTRODUCED

An Act relating to teachers; amending 70 O.S. 2021, Section 6-101.23, which relates to the Teachers Due Process Act of 1990; authorizing certain temporary contracts for teachers with emergency or provisional certificates; updating citations; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-101.23, is amended to read as follows:

Section 6-101.23. A. The dismissal, suspension and nonreemployment provisions of the Teacher Due Process Act of 1990 shall not apply to:

1. Substitute teachers;
2. Adult education teachers; and
3. Teachers who are employed on temporary contracts.

B. The dismissal and suspension provisions of the Teacher Due Process Act of 1990 shall apply to teachers who are employed on

1 temporary contracts for a complete school year and to teachers who
2 are employed in positions fully funded by federal or private
3 categorical grants, except that such teachers shall be employed only
4 for the duration of the temporary contract or the grant.

5 C. The evaluation provisions in Sections 6-101.10 and 6-101.11
6 of this title and in the Teacher Due Process Act of 1990 shall apply
7 to teachers who are employed on temporary contracts for a complete
8 school year and to teachers who are employed in positions fully
9 funded by federal or private categorical grants, except that such
10 teachers shall be employed only for the duration of the temporary
11 contract or the grant.

12 D. Teachers other than those specifically excepted in
13 subsection A of this section who are employed on contracts shall be
14 afforded all substantive and procedural rights set forth in the
15 Teacher Due Process Act of 1990 including the dismissal, suspension,
16 and nonreemployment provisions applicable to probationary or career
17 teachers as defined in Section 6-101.3 of this title.

18 E. On and after ~~the effective date of this act~~ July 1, 1999,
19 any teacher who has worked a complete school year under a temporary
20 contract in a school district shall be granted a year of service
21 credit toward career status in that district.

22 F. No teacher shall be hired on a temporary contract by a
23 school district for more than four semesters or on multiple
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1 temporary contracts by a school district that together are for more
2 than four semesters, except for a:

3 1. Teacher hired to replace a teacher who is on an approved
4 leave of absence and who is expected to return to employment with
5 the school district; ~~or~~

6 2. Teacher who is a retired member of the Teachers' Retirement
7 System of Oklahoma; or

8 3. Teacher who is employed by a school district on an emergency
9 or provisional certificate.

10 G. No teacher shall be offered a temporary contract with a
11 school district without a full written disclosure at the time a
12 position is offered by the administration of the school district
13 which sets forth the terms and conditions of the temporary contract.
14 In the event the school district fails to provide such written
15 disclosure, the teacher shall be considered as employed on a
16 continuing contract basis.

17 H. On and after ~~the effective date of this act~~ July 1, 1999, no
18 teacher who is employed on a continuing contract basis by a school
19 district shall be reemployed on a temporary contract in that school
20 district.

21 SECTION 2. This act shall become effective July 1, 2025.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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